

FILED
IN CLERKS OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ MAY 07 2014 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD
BUSSEY, and GREGORY HEADLEY,

Plaintiffs,

CV 14 COMPLAINT 2888

Index No.:

-against-

Jury Trial Demanded

CITY OF NEW YORK, DAVID LUPPINO, Individually,
PHILIP VACCARINO, Individually, and JOHN and JANE DOE 1
through 10, Individually, (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

AMON, CH.J.

Defendants.

MANN, M.J.

Plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and
GREGORY HEADLEY, by their attorneys, Leventhal & Klein, LLP, complaining of the
defendants, respectfully allege as follows:

Preliminary Statement

1. Plaintiffs bring this action for compensatory damages, punitive damages and
attorneys' fees pursuant to 42 U.S.C. §§1981, 1983 and 1988 for violations of their civil rights,
as said rights are secured by said statutes and the Constitution of the United. Plaintiffs also
assert supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, the Fourth
and Fourteenth Amendments to the United States Constitution. Plaintiffs assert supplemental
state law claims pursuant to common law and the New York State Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff WHITNEY GRAHAM is a twenty-four year old African American woman residing in Staten Island, New York.

7. Plaintiff SHARONE GRAHAM is a twenty-seven year old African American man residing in Staten Island, New York.

8. Plaintiff EDWARD BUSSEY is a thirty-seven year old African American man residing in Staten Island, New York.

9. Plaintiff GREGORY HEADLEY is a thirty-three year old African American man residing in Staten Island, New York.

10. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

11. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as “NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

12. That at all times hereinafter mentioned, the individually named defendants, DAVID LUPPINO, PHILIP VACCARINO, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

13. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

14. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

15. On August 3, 2012, at approximately 5:30 p.m., plaintiff SHARONE GRAHAM, was a motorist lawfully operating a motor vehicle on Jersey Street by the corner of Castleton Avenue, Staten Island, New York.

16. At said time, plaintiff EDWARD BUSSEY was a front seat passenger in SHARONE GRAHAM'S vehicle, and plaintiff WHITNEY GRAHAM, SHARONE GRAHAM'S sister, was a rear seat passenger in said vehicle.

17. At said time, plaintiff GREGORY HEADLEY was a lawful pedestrian on Jersey Street. Plaintiff HEADLEY is a friend of plaintiffs SHARONE GRAHAM and EDWARD BUSSEY.

18. At said time, plaintiff SHARONE GRAHAM recognized plaintiff HEADLEY

and pulled his vehicle to the curb to greet him. Plaintiff HEADLEY approached plaintiff GRAHAM'S vehicle, greeted plaintiffs SHARONE GRAHAM and EDWARD BUSSEY and engaged in conversation.

19. At said time, the defendant police officers approached plaintiffs.

20. At said time, Anthony Bahdur was a pedestrian on Jersey Street in the vicinity of plaintiff SHARONE GRAHAM'S vehicle. When the officers approached plaintiffs, Mr. Bhadur threw a bag of alleged crack cocaine to the ground. Mr. Bahdur did not purchase the alleged crack cocaine at said location and did not purchase said crack cocaine from plaintiffs. Mr. Bahdur did not have any interactions with the plaintiffs at said location or otherwise.

21. The defendant officers, including defendants LUPPINO and VACCARINO, nonetheless unlawfully searched plaintiffs and the vehicle they were in.

22. The defendants officers did not find any weapons or contraband on any of the plaintiffs nor in said vehicle.

23. Despite lacking probable cause to believe the plaintiffs committed any crime or offense, the defendant officers handcuffed plaintiffs, transported plaintiffs to the NYPD's 120th precinct stationhouse, and imprisoned therein.

24. The defendants imprisoned plaintiffs until the following day, when plaintiffs were arraigned on baseless charges filed under docket numbers 2012RI007065, 2012RI007066, 2012RI007067, 2012RI007068; said charges having been filed based on the false allegations of defendants LUPPINO and VACCARINO. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit:

including but not limited to, for overtime compensation, to meet arrest quotas, and/or generally for the purpose of personal or professional advancement notwithstanding the propriety of their conduct.

25. Defendant LUPPINO and VACCARINO falsely alleged that plaintiffs, acting together and in concert, sold crack cocaine to Anthony Bahdur. Defendants LUPPINO and VACCARINO falsely alleged that plaintiff HEADLEY escorted Bahdur to plaintiff SHARONE GRAHAM'S vehicle after being waved over by plaintiff WHITNEY GRAHAM, that plaintiff SHARONE GRAHAM passed a bag of crack cocaine to plaintiff EDWARD BUSSEY, and that plaintiff BUSSEY handed said bag of crack cocaine to Bahdur in exchange for a sum of money.

26. Defendants LUPPINO and VACCARINO also falsely alleged that plaintiff HEADLEY possessed a quantity of marijuana.

27. As a result of the defendants' false allegations, plaintiffs were charged with, *inter alia*, Criminal Sale of a Controlled Substance in the 3rd degree, a B felony.

28. As a result of the defendants' false allegations, bail was set on plaintiffs SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY, and said plaintiffs were imprisoned on Riker's Island until they were released on August 9, 2012.

29. Over the course of the next six months, the malicious prosecution compelled plaintiffs to return to Court for five appearances.

30. All of the purported charges levied against plaintiffs based on the false allegations of the defendants were dismissed and sealed in Richmond County Criminal Court on February 6, 2013.

31. The defendant officers created and manufactured false evidence against plaintiffs

and used same against them in said legal proceedings. Further, defendant LUPPINO and VACCARINO conveyed this false evidence to the Richmond County District Attorney's Office, and swore to said false allegations, which formed the basis of the criminal charges filed against plaintiffs.

32. Defendant JOHN DOE # 1 supervised defendants LUPPINO, VACCARINO, and JOHN and JANE DOE 2 through 10, and approved of, oversaw, and otherwise participated in the stops, searches, arrests, and prosecutions of the plaintiffs.

33. Defendant NYPD officers LUPPINO, VACCARINO, and JOHN and JANE DOE 1 through 10, either directly participated in the above described misconduct or were present or otherwise aware of said misconduct and failed to intervene, despite a reasonable opportunity to do so.

34. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees, and due to a *de facto* policy of falsification.

35. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding: the basis for stops, arrests, and the ramifications of falsification.

36. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW

YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

37. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

38. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY sustained, *inter alia*, physical injuries, emotional distress, embarrassment, and humiliation, and deprivation of their constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION (Deprivation of Rights Under 42 U.S.C. §§ 1981 and 1983)

39. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "38" with the same force and effect as if fully set forth herein.

40. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

41. All of the aforementioned acts deprived plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY, members of a racial minority, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§ 1981 and 1983.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race.

43. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

44. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

45. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

46. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

47. Defendants arrested plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

48. Defendants caused plaintiff WHITNEY GRAHAM, SHARONE GRAHAM,

EDWARD BUSSEY, and GREGORY HEADLEY to be falsely arrested and unlawfully imprisoned.

49. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

50. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. Defendants maliciously issued criminal process against plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY by causing him to appear in Richmond County Criminal Court.

52. Defendants caused plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY to appear in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit including but not limited to for overtime compensation, to meet arrest quotas, and/or generally for the purpose of personal or professional gain.

53. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees,

costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

54. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “53” with the same force and effect as if fully set forth herein.

55. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

56. Defendants caused plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY to be prosecuted without probable cause until the charges against plaintiffs on February 6, 2013.

57. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Violation of Right to Fair Trial under 42 U.S.C. § 1983)

58. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “57” with the same force and effect as if fully set forth herein.

59. Defendants created false evidence against plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

60. Defendants utilized this false evidence against plaintiffs WHITNEY GRAHAM,

SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY in legal proceedings.

61. As a result of defendants' creation and use of false evidence, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY suffered a violation of their constitutional right to a fair trial as guaranteed by the United States Constitution.

62. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

63. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. Defendants had an affirmative duty to intervene on behalf of plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY, whose constitutional rights were being violated in their presence by other officers.

65. The defendants failed to intervene to prevent the unlawful conduct described herein.

66. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY's liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subjected to handcuffing and other physical restraints.

67. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

68. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "67" with the same force and effect as if fully set forth herein.

69. The supervisory defendants personally caused plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

70. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

71. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "70" with the same force and effect as if fully set forth herein.

72. The defendants seized plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM,

EDWARD BUSSEY, and GREGORY HEADLEY, and detained, arrested, and imprisoned plaintiffs because of their national origin and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

73. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY were deprived of their rights under the Equal Protection Clause of the United States Constitution.

74. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

75. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "74" with the same force and effect as if fully set forth herein.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

77. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, engaging in a practice of falsification and manufacturing evidence; making arrests without regard to probable cause for purposes of obtaining overtime compensation and/or for professional advancement; and inadequate screening, hiring, retaining, training and supervising its employees. These customs,

policies, usages practices, procedures and rules were the moving force behind the violation of plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY's rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and the constitutional rights of plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

79. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY as alleged herein.

81. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY were unlawfully arrested, and maliciously prosecuted.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY'S constitutional rights.

83. All of the foregoing acts by defendants deprived plaintiff WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest;
- C. To be free from malicious prosecution;
- D. To be free from abridgment of the right to fair trial;
- E. To be free from the failure to intervene; and
- F. To receive equal protection under law.

84. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Supplemental State Law Claims

85. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "84" with the same force and effect as if fully set forth herein.

86. Within ninety (90) days after the claim herein accrued, plaintiff WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, duly served upon, presented to and

filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

87. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

88. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

89. Plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY have complied with all conditions precedent to maintaining the instant action.

90. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A TENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

91. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "90" with the same force and effect as if fully set forth herein.

92. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

93. Defendants caused plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY to be prosecuted without probable cause until the charges were dismissed on February 6, 2013.

94. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE

GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

95. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraph numbered "1" through "94" with the same force and effect as if fully set forth herein.

96. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest and prosecution of plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

97. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

98. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

99. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in

paragraphs numbered “1” through “98” with the same force and effect as if fully set forth herein.

100. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted, supervised and participated in the arrest and prosecution of plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY.

101. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

102. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “101” with the same force and effect as if fully set forth herein.

103. Plaintiffs’ injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

104. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees,

costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

105. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “104” with the same force and effect as if fully set forth herein.

106. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

107. As a result of the foregoing, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

WHEREFORE, plaintiffs WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD BUSSEY, and GREGORY HEADLEY demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
May 7, 2014

LEVENTHAL & KLEIN, LLP
Attorneys for Plaintiffs WHITNEY GRAHAM,
SHARONE GRAHAM, EDWARD BUSSEY, and
GREGORY HEADLEY
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 722-4100

By:


BRETT H. KLEIN (4744)
JASON LEVENTHAL (JL1067)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
WHITNEY GRAHAM, SHARONE GRAHAM, EDWARD
BUSSEY, and GREGORY HEADLEY,

Plaintiffs,

-against-

CITY OF NEW YORK, DAVID LUPPINO, Individually,
PHILIP VACCARINO, Individually, and JOHN and JANE DOE 1
through10, Individually, (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

-----X

COMPLAINT

LEVENTHAL & KLEIN, LLP
Attorneys for Plaintiffs WHITNEY GRAHAM,
SHARONE GRAHAM, EDWARD BUSSEY, and
GREGORY HEADLEY
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 722-4100

JS 44 (Rev. 1/2013)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Whitney Graham, Sharone Graham, Edward Bussey, and Gregory Headley

(b) County of Residence of First Listed Plaintiff Richmond
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Leventhal & Klein, LLP, 45 Main Street, Suite 230, Brooklyn, NY 11201
(718) 722-4100

DEFENDANTS

City of New York, David Luppino, Philip Vaccarino, and John and Jane Doe 1-10

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☐ 2 U.S. Government Defendant
☒ 3 Federal Question (U.S. Government Not Party)
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- PTF DEF
Citizen of This State ☐ ☐ Incorporated or Principal Place of Business in This State ☐ ☐
Citizen of Another State ☐ ☐ Incorporated and Principal Place of Business in Another State ☐ ☐
Citizen or Subject of a Foreign Country ☐ ☐ Foreign Nation ☐ ☐

IV. NATURE OF SUIT (Place an "X" in One Box Only)

☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g))	☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☒ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement	☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
42 USC 1983 and 1988, USCA 4 and 14

Brief description of cause:

Action to recover damages for false arrest, malicious prosecution and violation of the right to a fair trial by the NYPD

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE
05/07/2014

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

4653073790

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, Brett H. Klein, counsel for Plaintiffs, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☐ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☒ the matter is otherwise ineligible for the following reason **action based on an alleged violation of a right secured by the US Constitution**

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? NO
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? NO
- b) Did the events of omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? YES

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County?

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.



Yes



No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?



Yes (If yes, please explain)



No

I certify the accuracy of all information provided above.

Signature: Brett H. Klein